

PROTECTING THE SEA

Rethinking marine protected areas

EDS Oceans Reform Working Paper 2



Environmental
Defence
Society

Raewyn Peart and Deidre Koolen-Bourke

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List of abbreviations

ACE	Annual catch entitlement
DOC	Department of Conservation
EDS	Environmental Defence Society
EEZ	Exclusive economic zone
EEZ Act	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012
FM10	Fishery management area 10
HPA	High protection areas
IPCA	Indigenous Protected and Conserved Area
MACA Act	Marine and Coastal Area (Takutai Moana) Act 2011
MFE	Ministry for the Environment
MPA	Marine protected area
MPA Policy	Marine Protected Areas: Policy and Implementation Plan (2005)
MSP	Marine Spatial Planning
RMA	Resource Management Act 1991
SEMP	South east coast marine protection
SPA	Seafloor protection areas
TAC	Total allowable catch
TACC	Total allowable commercial catch
TOKM	Te Ohu Kaimoana
Treaty	Te Tiriti o Waitangi/Treaty of Waitangi

1 Introduction



Divers exploring Cape Rodney-Okakari Point Marine Reserve

The Environmental Defence Society's (EDS) Oceans Reform Project is seeking to strengthen oceans management in New Zealand. Phase One of the project reviewed the current oceans management system, considered how the management toolkit might be improved, explored the design of oceans-related laws and institutions, and pondered what a new model might look like. The results of that work were published in the 2022 'The Breaking Wave' report.¹

Phase Two of the project is developing more tangible propositions for change. Working Paper 1 (released in December 2024) explored experiences with, and the potential applicability of, marine spatial planning (MSP) to Aotearoa New Zealand's oceans along with initial proposals for a National MSP Framework.² This second working paper focuses on the development of a new marine protected area (MPA) framework. It follows on from an in-depth investigation into MPAs that EDS undertook in 2012 and published in 'Safeguarding Our Oceans'.³

The final Oceans Reform Project report (due mid 2025) will bring together, and further develop and refine, these analyses as well as explore other national integrative mechanisms such as an Oceans Commission, Oceans Act and National Oceans Strategy.

At the same time as preparing the working papers, EDS is undertaking three place-based case studies of marine management. The first, which focused on the Marlborough Sounds, was published in December 2024.⁴

A case study on the Otago coast was released with this working paper. We will shortly be completing a case study on the Bay of Islands.

The material included in this working paper has been drawn from reviews of literature on MPAs (which is voluminous and so we have only profiled a small selection of papers here), relevant debates in Parliament as recorded in Hansard, submissions made on various MPA initiatives, and interviews with a range of parties. In total we spoke to 28 people from the commercial fishing, recreational fishing, environmental NGO, science, law and government sectors. They included people with Māori tribal connections and former Ministers of Conservation. We have included anonymous quotes from these interviews, in pink coloured boxes, to provide 'colour' to the discussion. We have not referenced these quotes to protect confidentiality.

Part One of this working paper provides a background to the topic of MPAs. In Chapter 2 we review a variety of aspects including what MPAs are, the rationale for creating them (including in the New Zealand context), when they are most successful and how MPAs relate to Te Tiriti o Waitangi/Treaty of Waitangi (the Treaty).

Chapter 3 provides historical context, by reviewing various efforts to evolve a legislative and policy framework for MPAs, and draws out what we can learn from them. Chapter 4 reviews international approaches to MPAs including international commitments that the New Zealand government has signed up to, and the use of multi-functional MPAs.

2 Overview of MPAs



People enjoying Te Whanganui-o-Hei/Cathedral Cove Marine Reserve

In this chapter we traverse various approaches to defining MPAs, benefits that MPAs can provide (as identified in national and international literature), factors that support successful MPAs, and how approaches to MPAs can reflect Treaty obligations.

2.1 What are MPAs?

In broad terms, MPAs seek to provide a “safe place” for marine life.¹ The 2005 ‘Marine Protected Areas: Policy and Implementation Plan’ (MPA Policy) defines an MPA as “An area of the marine environment especially dedicated to, or achieving through adequate protection, the maintenance and/or recovery of biological diversity at the habitat and ecosystem level in a healthy functioning state.”² The definition is further fleshed out in what is termed the ‘MPA Protection Standard’ (see spotlight).

The MPA Policy contemplates spatial areas being classified as MPAs, even if their prime purpose is not biodiversity protection, but is the consequence of a different management regime. However, it emphasises that MPAs are not seeking to achieve comprehensive marine management or other objectives (such as sustainable fisheries) although they may contribute to such broader outcomes.³

This approach is different to the IUCN’s 2008 definition of a protected area more generally which is “a clearly defined geographical space, recognised, dedicated and managed, through legal or other effective means, *to achieve the long-term conservation of nature* with associated ecosystem services

and cultural values”.⁴ This highlights that ‘nature conservation’ must be the prime objective and not be incidental to another purpose. Notably, the definition emphasises the ‘long-term’ nature of marine protection, thereby excluding temporary and other shorter-term management measures. More recently “other effective area-based conservation measures”, which are not protected areas under the IUCN definition (as they do not have nature conservation as their prime objective), have been internationally recognised as contributing to long-term biodiversity conservation goals.⁵

Spotlight on New Zealand’s MPA Protection Standard

To comprise an MPA under the 2005 MPA Policy (through meeting the MPA Protection Standard), the management tool deployed must “enable” the maintenance or recovery of the site’s biological diversity (at the habitat and ecosystem level) to a healthy functioning state. This includes:

- (a) physical features and biogenic structures that support biodiversity;
- (b) ecological systems, natural species composition (including all life-history stages), and trophic linkages; and
- (c) potential for the biodiversity to adapt and recover in response to perturbation.⁶

(where point source waste is prohibited and non-point source pollution controlled).¹¹

- The Australian Victorian State government has created 13 large 'marine national parks' and 11 smaller 'marine sanctuaries' as no-take areas along with two marine and coastal parks, two marine parks and one marine reserve which are managed as multiple use areas.¹²
- The Australian New South Wales government has created six large multiple use 'marine parks', 12 'aquatic reserves' (which have various fishing restrictions), and various land-based national parks and nature reserves which extend over estuarine and oceanic habitats.¹³



Long Bay-Okura Marine Reserve

Spotlight on ocean digital twins: Moving from static to dynamic MPAs

Most MPA processes are based on the underlying premise that marine habitats should be mapped and characterised, with the aim of protecting a representative sample of different habitat types. This approach underlies the MPA Policy where Network Design Principle 2 states that "MPAs should be designated based on a consistent approach to classification of habitats and ecosystems".¹⁴ The approach is further developed in the 2008 'Classification, Protection Standard and Implementation Guidelines' where a classification approach is set out consisting of a hierarchy of five layers and 44 categories.¹⁵

Although practical (given available information), such an approach fails to reflect the dynamic nature of marine systems, and the three-dimensional interconnectedness of ocean space. In particular, species can span a wide diversity of habitats during their lifecycles and they interact with each other in complex ways. Climate change is serving to change many of these relationships in real time. An MPA network designed on a static mapping process can fail to reflect these complex and ever-changing inter-relationships.

A more dynamic systems approach is becoming possible through real time modelling, artificial intelligence and the development of 'digital twins'. Ocean digital twins are virtual and near real-time representations of the ocean system where the cyber (computer modelled) and physical systems are coupled. Measured changes to the living and non-living elements of the marine environment automatically modify their 'virtual replica'. Such twins can draw on artificial intelligence to foster continual learning, develop future scenarios, and generate optimal management responses.¹⁶

A potential benefit of this approach is that land-based stressors, climate change and extractive uses could be factored into the design and management of MPAs in a dynamic and real-time manner. However, the challenge will be to design a regulatory system that can accommodate such a dynamic management approach.

Many positive benefits are claimed for well-designed MPAs including:²⁴

- a) Increased abundance and diversity of species
- b) Restored biogenic habitats
- c) Re-established foundation and keystone species
- d) Greater variation in age and size structure (including more older, larger and highly productive fish)
- e) Protection of habitats of significance for fisheries management
- f) More productive fish stocks in the surrounding area²⁵
- g) Provision of a safety net against fisheries collapse²⁶
- h) Increased marine ecosystem productivity
- i) Greater resilience to stressors (such as sea water warming,²⁷ sedimentation, pollution and invasive species)²⁸
- j) Increased carbon sequestration
- k) Increased scientific knowledge²⁹
- l) Provision of control sites for identifying impacts of human use (including fishing)³⁰
- m) Enhanced cultural, educational and recreational opportunities
- n) Economic benefits through tourism and enhanced fish stocks³¹
- o) Increased ecosystem services more generally.³²

“There is value in marine reserves reconnecting people with the marine environment. If people don't know what's out there they don't care. Environmental education is massively important.”

MPAs are assuming more importance as climate change disproportionately impacts already damaged marine ecosystems. As highlighted in Working Paper 1, the oceans have absorbed around 90 per cent of excess heat

trapped by anthropogenic greenhouse gases, along with 25 per cent of excess carbon dioxide. Already evident, seawater warming and acidification is increasing. Marine heatwaves are becoming more frequent, intense and longer lasting pushing some marine species to the brink.³³ It is becoming increasingly urgent to support greater resilience, through limiting other avoidable external pressures in marine ecosystems, so they can adapt and survive.

It has to be acknowledged that MPA benefits are often disputed, particularly by those impacted by their creation, including indigenous peoples and the fishing sector. In some cases, no-take protection has been termed ‘ocean-grabbing’, when it arbitrarily dispossesses traditional resource users from marine space.³⁴

Fishers argue that a well managed fishery will not benefit from MPAs, and in fact may be harmed by them, through the removal of productive space from harvesting. This is on the basis that good fisheries management achieves the ‘maximum sustainable yield’ or optimal productivity of the fish stock, and at that point marine protection adds little.³⁵ In addition, not all MPAs will result in spillover into adjacent fisheries, as this is dependent on reserve size, shape and location as well as the life cycles and characteristics of the species they protect (including how mobile they are).³⁶ MPAs will likely make the most contribution to fisheries when there are recruitment, productivity and habitat issues that cannot be effectively addressed by harvest level adjustments alone.

This raises the question of how well fisheries in New Zealand are managed and what the role of MPAs might be (if any) in supporting healthy fish stocks. For a start, it is clear that not all fish stocks managed under the quota management system are healthy. This was highlighted in our Marlborough Sounds case study where we found depletion of green-lipped mussels, pilchards, blue cod, scallops, pāua, rock lobster and hāpuku.³⁷ It was also surprising to find that the spillover effect of snapper larvae from the small but historically productive Cape Rodney-Okakari Point Marine Reserve in the Hauraki Gulf (covering just 1.3% of the study area) was directly linked to 10.6% of the juvenile snapper population in surrounding waters (covering some 398 km²).³⁸

Research on the rock lobster stock in Fiordland (CRA8) credits the implementation of a MPA network with supporting the rapid rebuild of the heavily depleted stock, when compared to the slower rebuild in the adjacent CRA7 fishery on the Otago coast, which lacked similar protection (although benefited from increased larvae production from CRA8).³⁹ However, as the MPAs were implemented at the same time as more

Read together there is an inherent obligation on the Crown to effectively legislate for the protection of the marine environment, particularly where degradation threatens to “adversely affect the continued use or enjoyment of [traditional] resources whether in spiritual or physical terms”.⁴⁹ Te Mana o Te Taiao – Aotearoa New Zealand Biodiversity Strategy reinforces this by highlighting that mātauranga Māori is lost when a species vanishes, creating the need to enhance and regenerate biodiversity in order to support the regeneration and continuation of mātauranga.⁵⁰ So under the Treaty, marine protection is important, but it needs to be undertaken in a way that does not undermine Māori authority over their own resources.

The Waitangi Tribunal examined the Treaty clauses in detail, as they applied to the marine area, in the Muriwhenua Claim. This alleged breaches of the Treaty through legislation (including the Marine Reserves Act 1971 and Fisheries Act 1983), creation of individual transferable fisheries quota, and the depletion of marine life (amongst many other things). These had collectively interfered with Māori fisheries and fishing rights.⁵¹

The claim was lodged in June 1985 by Ngāti Kuri and Te Aupouri. It was precipitated by a discussion document issued by the Ministry of Agriculture and Fisheries which proposed to establish extensive marine reserves within the Northland area. They included prohibiting fishing from Kapowairau (on the northern coast of Cape Reinga) down to Waitangi in the Bay of Islands.⁵² These were described by the claimants as being shaped “as though the northern tribes did not exist and as though the Treaty had never been written”.⁵³

A major finding in the inquiry was that Māori “considered themselves, and must be considered as retaining the authority over [the seas]”.⁵⁴ The Tribunal did not inquire into marine reserves in any depth, being much more focused on the pending privatisation of fishing rights through the grant of quota, but it did state:⁵⁵

We wonder however how far marine or any other form of management planning can proceed without prior inquiry into the nature and extent of Māori fishing interests and the impact of the Treaty of Waitangi.

Since the Muriwhenua case concluded there have been significant legal developments in recognising Māori rights and interests in the marine area. They include:⁵⁶

- Settlement of customary commercial fishing rights through the grant of quota and financial redress (including to purchase a half share in Sealord)

- Recognition of customary non-commercial fishing including through providing for the establishment of taiāpure, mātaimai reserves and temporary fisheries closures
- Settlement of aquaculture rights through the provision of settlement space and/or financial compensation
- Common law and statutory recognition of some forms of customary rights over the marine area.

As a result, iwi are now a significant player in the country's marine economy, foremost as owners of commercial fishing quota. A 2019 study found that, in addition to Treaty settlement quota (comprising 10 per cent of total quota and valued at \$314 million), iwi had acquired a similar amount of non-settlement quota, bringing the total amount of Māori quota holdings to 20 per cent and valued at \$636 million. This stake in commercial fishing is continuing to increase with over 60 per cent of Māori organisations actively acquiring more quota.⁵⁷

The exercise of non-commercial customary fishing rights has been more controversial, with iwi and hapū who propose the establishment of taiāpure and mātaimai, frequently encountering opposition. We were told that it was not unusual for proponents to come under orchestrated attacks, and it notably took seven years to establish the East Otago Taiāpure, after the proposal divided the community.⁵⁸

“Concepts of mātaimai, taiāpure, kawenata, and rāhui should be integral to the development of marine protected areas, to recognise customary non-commercial rights.”⁵⁹ (New Zealand Conservation Authority)

Many iwi also have interests in marine farming, with 13 per cent of Māori entities holding licences and eight per cent undertaking farming activities themselves (as at 2019). However, only one iwi (Ngāi Tahu) holds marine mammal watching permits (in Kaikōura and Akaroa). In addition, only 14 per cent of iwi had established taiāpure or mātaimai reserves, highlighting the latent potential of these customary management tools.⁶⁰ Customary rāhui and temporary spatial closures under sections 186A and 186B of the Fisheries Act are also utilised from time to time. All these Māori interests in the marine space (along with cultural and spiritual associations with the area) are highly relevant when considering MPA policy and its impact on Treaty obligations.

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3 Past MPA reform efforts



University of Auckland marine laboratory at Leigh which was the impetus for the Marine Reserves Act

In order to develop tangible proposals for successful MPA reform, it is important to understand where we have come from and how previous efforts at reform have played out, so we can build on that experience. This is the focus of the following sections.

3.1 Narrowly-framed Marine Reserves Act

New Zealand is said to be the first country to adopt no-take MPA legislation. A Marine Reserves Bill was introduced into Parliament, in April 1970, by the then Minister of Marine and Fisheries, National Party MP Allan McCready. The scope of the legislation was intentionally narrow. It enabled “limited areas” to be set aside to preserve marine life and habitat “so that they may be studied scientifically and enjoyed by the public”.¹ The Bill was passed into law in 1971, prior to the country declaring an exclusive economic zone (EEZ) in 1978,² so necessarily only applied to the country’s coastal waters.

“We were in my view at the leading edge of MPAs in 1971 when the legislation passed. It was a great effort. Bill Ballantine [University of Auckland marine scientist] did great work.”

The underlying concept was that marine reserves would enable scientific work to be undertaken without disturbance from fishing. The reserves would apply to a “reasonably limited area” and were definitely “not intended to take over vast areas”.³ Some MPs considered the legislation

did not go far enough as the areas to be protected would be “extremely limited”. Nevertheless, it was seen as a “first step” that would at least help protect sites “of real scientific interest.”⁴ Notably, this first step is still the governing law more than 50 years later.

Only limited categories of parties were able to lodge applications for marine reserves. They comprised any university, the then National Parks Authority, a reserves board administering adjacent land and “any incorporated society or other body corporate engaged in or having as one of its objects the scientific study of marine life or natural history.”⁵ A later amendment added iwi and hapū with tangata whenua status over the area, and the Director-General of Conservation, to the list.

The legislation provided broad rights of objection and protections for existing rights and interests. A marine reserve could only be declared, in the face of objection, if it did not “interfere unduly” with adjacent land, navigation and commercial fishing and did not interfere unduly with or “adversely affect” recreational activities.⁶ Notably, no mention was made of Māori customary fishing. In fact, Māori rights and interests did not feature at all except that owners of adjacent Māori land were to be notified of a marine reserve proposal along with other landowners.

Overall, this means that recreational activities are given greater protection under the Marine Reserves Act than other interests. Given the very narrow scope and purposes of the Act, some MPs felt that these provisions were unnecessary. One asked “how can it be suggested that

Spotlight on reasons for poor progress with marine reserve creation

In 1991, Bill Ballantine who had been a strong proponent for the Marine Reserves Act (and the creation of marine reserves more generally) summed up the reasons why little progress had been made since DOC had taken over the mandate for marine conservation in 1987:¹⁸

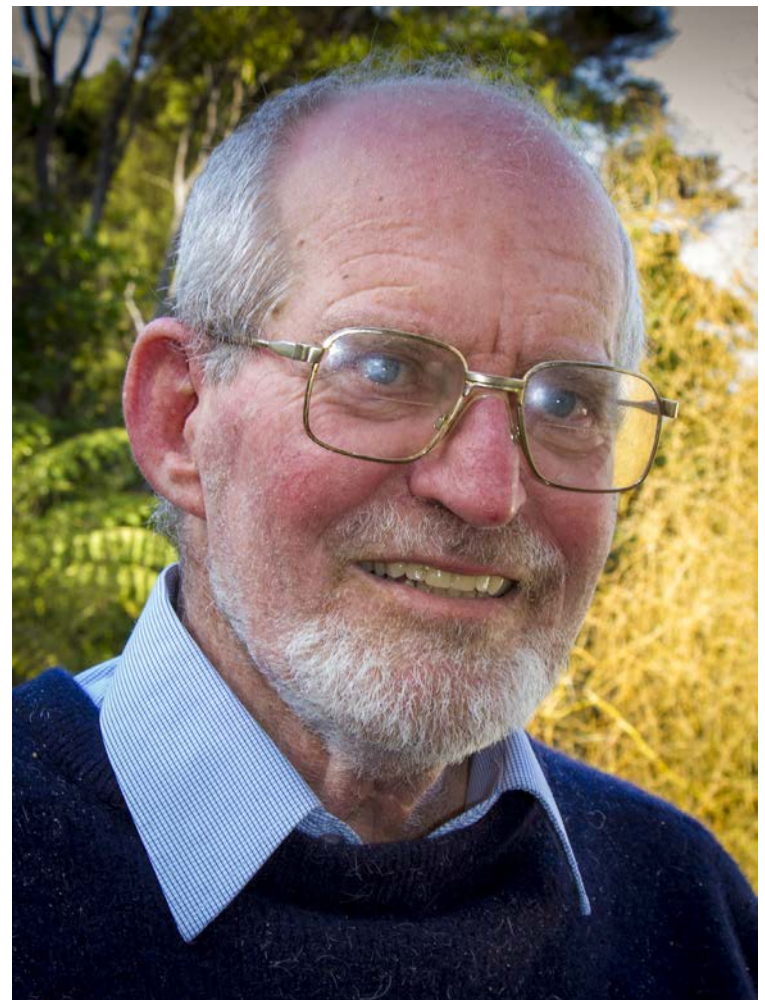
1. A lack of commitment at the political level – senior politicians had yet to regard marine reserves as urgent or important.
2. A lack of marine experience in the department – most staff were (naturally) recruited for their terrestrial experience.
3. Insufficient funding for ‘new’ activities – no significant funds were transferred from the Ministry of Agriculture and Fisheries for marine reserves.
4. Inadequacies in the existing legislation – the Marine Reserves Act was written to permit special cases, not to compel general action.
5. The restructuring of the department after only eighteen months operation – including the abolition of the coastal and marine directorate.
6. Excessive fears over public reaction which is still unknown and hence particularly inhibiting to sensitive administrators and politicians.
7. Simple lack of administrative experience – only two marine reserves had ever been created in New Zealand, both a decade ago, and by different departments.
8. Inappropriate comparisons to land reserves – the creation of more reserves on land, with over a thousand reserves already in existence, is mainly a matter of fine tuning. In the sea, with only two reserves, the general policy is still to be decided.

Ballantine reiterated “None of these factors separately would have prevented rapid action but in combination they have been very effective in slowing progress to a crawl. At the time of writing [November 1989] it has not even been possible to create the Kermadec Is. marine reserve which was proposed by the Ministry of Agriculture and Fisheries as long ago as 1985”.

3.2 Stalled Marine Reserves Bill

In 2000, the government initiated an ocean policy process along with a review of the Marine Reserves Act. This was under a newly elected Labour-led minority coalition government, which included the Alliance Party, and received support from the Green Party.

By that time (almost 30 years after the Marine Reserves Act had come into force) a total of 16 marine reserves had been established around the country. Not surprising, given the original intent of the legislation, they were mainly small discrete areas. The one exception was a large marine reserve that was finally established in 1990 around the remote Kermadec Islands (see Figure 3.1).



Bill Ballantine shortly before he passed away in 2015 at 78 years of age. He was known as the “father” of marine reserves and was widely recognised internationally for his efforts in marine conservation

Other deficiencies in the current legislation, highlighted by the Minister, included the lack of any specific provision for meeting Treaty obligations and poor linkages with recent environmental legislation (such as the RMA). Reserves could not be created beyond the 12-mile limit meaning “there are few protection mechanisms for marine ecosystems within the exclusive economic zone.”²³

Spotlight on the Marine Reserves Bill 2002

The Marine Reserves Bill was intended to modernise New Zealand’s marine conservation regime. In particular it:²⁴

- Set a new purpose focused on conserving “indigenous marine biodiversity”
- Clarified that there was to be no fishing in marine reserves (thereby avoiding the Poor Knights Islands situation)
- Applied the precautionary principle
- Extended the marine reserve protection mechanism into the EEZ
- Permitted any party to apply for a marine reserve
- Streamlined the process for applying for and approving marine reserves
- Removed the requirement for the Ministers of Fisheries and Transport to concur
- Introduced a concession system for commercial activities similar to that for national parks
- Enabled advisory committees and management boards to be established.

The Bill made much greater provision for Māori, than in the Marine Reserves Act, including a Treaty clause (requiring the principles of the Treaty of Waitangi to be “given effect to”). It also required the Minister of Conservation to take into account the effects of a proposed reserve on customary fishing and the relationship of tangata whenua with the site; tangata whenua were to be consulted from an early stage of developing reserve proposals; and there were clear requirements for tangata whenua to be represented on any reserve committee.²⁵

The ACT party was fully opposed to the Bill. The National Party, United Future and NZ First had some reservations but agreed to support it through to select committee. There was broad agreement that greater protection, and increased mechanisms to support conservation, were needed. But there was dispute over how this was best achieved. Most MPs considered details could be worked through in select committee.

“One of the main tensions in this bill is between preserving the sustainable catch for those interested in recreational or commercial fishing, while also maintaining the wonderful biodiversity that we have seen becoming depleted so much more rapidly over the last few years.”²⁶ (Dr Paul Hutchison, National Party MP)

Specific concerns raised about the Bill during its first reading included:

1. The application of the precautionary principle. ACT characterised this as an “if we are in doubt about whether an activity is sustainable, we just want to shut it down” approach.²⁷
2. Extension of the regime into the EEZ and the impact “massive exclusion zones” would have on commercial fisheries.²⁸
3. Impacts on commercial, recreational and customary fishers more generally.²⁹
4. The absence of a compensation regime for commercial fishers.³⁰
5. The Minister of Conservation’s dominant role in decision-making and the risk of policy being overly influenced by “preservation” groups.³¹
6. The inclusion of a Treaty clause, without explaining what it meant, including for customary fishers.³²

“If the Government locks up 10 percent of our productive marine environment, it could greatly damage our fishing industry and deny recreational and customary fisheries their right to fish.”³³ (Brian Connell, National Party MP)

Despite such concerns, the Bill proceeded to select committee in October 2002, and a public submissions process was initiated. A total of 170

3.3 Progress through collaboration

As the Marine Reserves Bill became bogged down in politics, DOC started promoting collaborative processes for identifying and creating networks of MPAs. The Department also took a more proactive approach in considering other tools that could be deployed to spatially protect marine areas (including those shown in Figure 3.2).

The initial framework for this new approach was set out, in 2005, in the DOC and Ministry of Fisheries jointly developed MPA Policy. This was intended to provide “an integrated process, including regional consultation, for establishing a network of marine protected areas around New Zealand”.

Implementation was to be underpinned “by a commitment to minimise the impact of new protected areas” on existing users and Treaty settlement

obligations. Planning for new areas was to be “science-based, using a consistent approach to habitat and ecosystem classification” with an inventory compiled to identify gaps in the network. The overall goal was still to have 10 per cent of the country’s marine environment with some form of protection by 2010.⁴³

The MPA Policy was fleshed out, in 2008, by the ‘Marine Protected Areas: Classification, Protection Standard and Implementation Guidelines’. These provided for the establishment of 14 community-based marine protection fora which were to be tasked with identifying representative networks of MPAs in each of 14 coastal biogeographic regions around the country. This regional community-based approach drew on the success of the Fiordland collaborative process which had resulted in the establishment of the Fiordland Marine Guardians and a network of MPAs in Fiordland.⁴⁴

Spatial tool	Statute	Restrictions	Area	Decision-maker
Marine reserves	Marine Reserves Act 1971	No-take areas where all extractive activities are prohibited	Territorial sea	Minister of Conservation (with concurrence from Fisheries and Transport Ministers)
Marine mammal sanctuaries	Marine Mammals Protection Act 1978	Variable	Territorial sea and EEZ	Minister of Conservation
Submarine cables and pipeline protection zones	Submarine Cables & Pipelines Protection Act 1996	No fishing or anchoring except for research vessels (which must not attach to the seabed)	Territorial sea and EEZ	Minister of Transport
Sustainability measures	Fisheries Act 1996	Various, can include gear restrictions and spatial fishing closures	Territorial sea and EEZ	Minister for Oceans and Fisheries
Regional coastal plans	Resource Management Act 1991	Various, can exclude fishing for biodiversity protection	Territorial sea	Regional councils and Environment Court
Regulations	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012 (EEZ Act)	Various	EEZ	Minister for the Environment
Customary management: mātaihai reserves, taiāpure, rāhui	Fisheries Act 1996 and customary fishing regulations	Various	Territorial sea	Iwi and hapū Minister for Oceans and Fisheries

Figure 3.2: Potential spatial marine protection tools

Type 1 MPAs	Date Gazette/Order	Government	Size (ha)
Auckland Islands – Motu Maha	15 December 2003	Labour/PROG (Clark)	498,000
Ulva Island – Te Wharawhara	15 November 2004	Labour/PROG (Clark)	1,075
Fiordland (Te Moana o Atawhenua) Marine Management Act 2005	20 April 2005	Labour/PROG (Clark)	
Te Hapua (Sutherland Sound)			449
Hawea (Clio Rocks)			411
Kahukura (Gold Arm)			464
Kutu Parera (Gaer Arm)			433
Taipai Roa (Elizabeth Island)			613
Moana Uta (West Jacket Arm)			2,007
Taumoana (Five Finger Peninsula)			1,466
Te Tapuwae o Hua (Long Sound)			3,672
Te Matuku	4 July 2005	Labour/PROG (Clark)	690
Horoirangi	5 December 2005	Labour/PROG (Clark)	904
Te Paepae o Aotea (Volkner Rocks)	11 September 2006	Labour/PROG (Clark)	1,267
Parininihi	11 September 2006	Labour/PROG (Clark)	1,844
Whangarei Harbour	11 September 2006	Labour/PROG (Clark)	237
Tapuae	7 April 2008	Labour (Clark)	1,404
Taputeranga	28 July 2008	Labour (Clark)	855
Tāwharanui	15 August 2011	National/ACT/UF/M (Key)	394
Akaroa	12 May 2014	National/ACT/UF/M (Key)	512
Subantarctic Islands Marine Reserves Act 2014	14 February 2014	National/ACT/UF/M (Key)	
Moutere Mahue Antipodes Islands			217,287
Moutere Hauriri Bounty Islands			104,626
Moutere Ihupuku Campbell Islands			290,000
Kaikōura (Te Tai o Marokura) Marine Management Act 2014	7 August 2014	National/ACT/UF/M (Key)	
Hikurangi			10,416
West Coast Marine Protection Forum			
Hautai	11 August 2014	National/ACT/UF/M (Key)	853
Kahurangi	11 August 2014	National/ACT/UF/M (Key)	8,419
Punakaiki	11 August 2014	National/ACT/UF/M (Key)	3,520
Tauparikākā	11 August 2014	National/ACT/UF/M (Key)	17
Waiau Glacier	11 August 2014	National/ACT/UF/M (Key)	4,557

Figure 3.3 Marine reserves created since 2000 (those resulting from collaborative processes shown in darker green)

mainly held by the Crown. However, 16 per cent had been transferred to TOKM for eventual allocation to iwi, under the terms of the Māori Fisheries Settlement.⁶¹

The reasons for the lack of development of a commercial fishery in FMA10 included the marine reserve preventing all fishing within the territorial sea, the benthic protection area preventing bottom trawling within the EEZ,⁶² and the distance of the islands from the mainland. A small part of the catch of highly migratory species (4%), such as bigeye tuna, swordfish and moonfish, was being taken from within FMA10. But as the quota management area for these species included the entire country's EEZ, they could also be readily caught outside the Sanctuary area.

Most controversially, in terms of subsequent legal challenges, the Bill stated that “No compensation is payable by the Crown for any loss or damage, or any adverse effect on a right or interest, (including, without limitation, to or on the value of quota or a right to fish) arising from the enactment or operation of this Act”.⁶³ This mirrors the current practice when establishing marine reserves under the Marine Reserves Act, that no compensation for loss of fishing rights is payable, although that Act is silent on the issue.

The legal challenges against the Bill raised three key allegations: (1) the Bill effectively confiscated quota; (2) the establishment of the Sanctuary was a breach of the Crown's duty of good faith to Māori (through the failure to undertake fully informed consultation, and to proceed without consent of TOKM or iwi, and without compensation); and (3) the actions of the Crown were contrary to the Māori Fisheries Settlement.⁶⁴

Subsequent Labour-led governments put considerable effort into seeking a resolution that would enable the Kermadec Ocean Sanctuary to proceed. However, a negotiated settlement was voted down by iwi fisheries organisations in June 2023. The Bill was finally withdrawn from Parliament in March 2024. Meanwhile, it had stalled progress with MPA reform, and impeded progress with establishing additional MPA networks.

Efforts to progress MPA reform under recent Labour Governments (2017-2023) also made little headway. A discussion document was worked up by officials, and was ready to go in 2021.⁶⁶ It set out a government proposal to replace the Marine Reserves Act and the MPA Policy with a new Marine Protected Areas Act and National MPA Strategy.

The new Act was to apply to the EEZ as well as the territorial sea and internal waters (eg estuaries and tidal rivers). Its purpose was to be “the establishment and effective management of MPAs to maintain, protect and restore indigenous marine biological diversity and ecosystem function and resilience”.⁶⁷ Two categories of MPAs were to be provided for, marine reserves (which were highly protected) and marine conservation areas which could be tailored to meet specific marine protection objectives. A marine protection standard would set out the minimum level of protection required for areas, other than the two categories provided for under the Act, to qualify as an MPA.⁶⁸

In terms of provision for Māori, there was to be explicit provision for rights and interests in other legislation (and for impacts on them) to be considered, and for meaningful partnership with iwi/Māori in the development of the MPA Strategy (potentially through co-design) and processes for establishing, managing and reviewing MPAs. In particular, customary fisheries management practices were to be recognised and options for co-governance arrangements explored.⁶⁹

The National MPA Strategy was to be a statutory document made on the joint recommendation of the Ministers of Conservation, Oceans and Fisheries, and Environment. It would be reviewed every 10 years. The Strategy was to include national objectives, priorities and standards. It could also inform a range of actions such as setting up collaborative processes for establishing MPAs and assessing impacts on other users of the marine area.⁷⁰ The proposals also included the establishment of a Science and Mātauranga Māori Advisory Board to provide scientific and technical advice on the implementation of the MPA Strategy and to support collaborative groups considering MPA proposals.⁷¹

The establishment of MPAs was to be through a five stage process: (1) initial screening of proposals (either government-initiated regional-scale processes or outside expressions of interest) and a Ministerial decision on whether to progress them; (2) engagement to refine proposal scope and process followed by Ministerial confirmation; (3) proposal development (either led by government agencies or a collaborative group) and Ministerial decision to progress to stage 4; (4) public consultation on proposal led by government agencies or an independent panel with final recommendations to Ministers; (5) final joint decision by the Ministers of Conservation and Oceans and Fisheries before establishment.⁷²

3.5 Paused MPA discussion document

“Establishing marine protection is not easy. Approaches to establishing marine reserves and marine protected areas are fraught with tension and have historically taken a long time.”⁶⁵ (Auditor-General)

Impact on Māori	Treaty clause; consultation with iwi/hapū when proposal prepared; reserve must have no “undue adverse effect” on relationship of iwi/hapū with area or ability to undertake customary food gathering; advisory committees to include iwi/Māori representation	Treaty clause; meaningful iwi/Māori involvement in all stages; requirement to maintain the integrity of MACA rights and fully recognise non-commercial customary fishing arrangements; advisory committees to include iwi/Māori representation	Under Conservation Act Treaty clause; explicit provision for rights and interests in other legislation (and for impacts on them to be considered); potential co-design of National MPA Strategy; partnership in establishing, managing and reviewing MPAs; customary fisheries management practices to be recognised; options for co-governance arrangements to be explored
Tourism	Concessions system	Concessions system	Concessions system
Management	Management bodies and advisory bodies can be appointed; management plans to be prepared	Advisory boards	Advisory management groups; MPA management plans
Monitoring and reporting	Silent	Status of MPAs regularly reported on	Report on state of MPA network every 10-15 years

Figure 3.4: Comparison between key provisions of the Marine Reserves Bill 2000, Marine Protected Areas Act 2016 proposals and Marine Protected Areas Act 2021 proposals

However, these proposals never saw the public light of day and the reform process was paused while Ministerial and staff efforts focused on landing the Kermadec Ocean Sanctuary as well as progressing the Hauraki Gulf and SEMP MPA networks (see Figure 3.5). But, as it turned out, the Kermadec efforts failed to reach fruition (and the proposal has since been abandoned) and the Hauraki Gulf and SEMP networks are still work in progress. Meanwhile, MPA policy reform had been left languishing once again.

Despite this lack of progress on policy reform, there has been some positive movement in expanding the MPA network on the ground. An updated gap analysis in 2019 found that coverage had increased by around 50 per cent, since 2011, albeit from a very low base. A total of 9.8 per cent of the territorial sea was now protected in Type 1 MPAs and this increased to 12.3 per cent coverage when Type 2 MPAs were included.⁷³

Due to the bulk of MPA protection being located around offshore islands, mainland bioregions in 2019 had only 0.3 to 4.7 per cent of their area in MPAs. Fiordland had by far the highest proportion of protection (4.72%), with the lowest being along the east coast of the North Island (0.25%), followed by the south coast of the South Island (0.47%).⁷⁴

The analysis also investigated representivity and replication. Of 416 habitats identified across 14 bioregions, more than 65 per cent were not protected in any marine reserve, and 70 per cent have less than one per cent of their extent protected. The level of replication (the same habitat protected in more than one MPA) was also low with several bioregions having no replication at all.⁷⁵

The lack of clear evidence, on what the existing 44 marine reserves have achieved to date, has potentially hampered progress. MPA monitoring has been patchy, and the results not generally well reported, although this is improving. DOC released a marine monitoring and reporting framework in 2022 and has plans to develop a monitoring plan for each marine reserve over time.⁷⁶ Currently just over half (24) of the country's 44 marine reserves have some level of monitoring, with an annual budget of \$235,000.⁷⁷

Whatever one thinks of the value of MPAs it is clear that, in 2025, New Zealand does not have a representative network of MPAs and there is little protection for most mainland bioregions. This slow progress is significantly out of step with public opinion (see spotlight) suggesting that lack of public support is not a factor hindering progress.

amendments. Support for the Bill was unanimous across select committee members from all political parties. The Bill has received a second reading and is currently in the hands of the National/ACT/NZ First Coalition Government awaiting final passage.

The Government has recently announced that it will make last-minute changes to the Bill to permit ring-net fishing within two of the HPAs, remove a no compensation clause that had been inserted at the select committee stage, and modify some of the provisions relating to the Treaty clause and to Māori (including removing reference to hapū and whānau). This is largely in response to proposals by the fishing industry and TOKM.⁸² It highlights the highly politicised nature of MPA processes, with key sectors able to achieve last minute changes in their favour through lobbying politicians.

Name	Category	Size (ha)
Hauraki Gulf / Tīkapa Moana Marine Protection Bill 2024		
Te Hauturu-o-Toi / Little Barrier Island	HPA	19,525
Slipper Island / Whakahau	HPA	1,331
Motukawao Islands	HPA	2,911
Pakatoa and Tarahiki /Shag Island	HPA	1,235
Rangitoto and Motutapu	HPA	1,060
Cape Colville	HPA	2,661
Mokohīnau Islands	HPA	11,824
Alderman Islands / Te Ruamahua (north)	HPA	13,375
Alderman Islands / Te Ruamahua (south)	HPA	15,485
Kawau Bay	HPA	4,093
Tiritiri Matangi	HPA	949
The Noises	HPA	5,951
Cape Rodney-Okakari Point extension	Marine reserve	1,517

Te Whanganui-o-Hei /Cathedral Cove extension	Marine reserve	1,461
South-east Marine Protection Forum		
Waitaki	Marine reserve	10,100
Te Umu Kōau	Marine reserve	8,800
Papanui	Marine reserve	16,900
Ōrau	Marine reserve	2,900
Ōkaihae	Marine reserve	500
Hākinikini	Marine reserve	600

Figure 3.5 Pending HPAs and marine reserves

3.7 What we can learn from past efforts

It is clear from the above historical review that considerable effort has been put into MPA law reform, by many people over many years, but with few tangible results to show for it. This is not due to a lack of knowledge about effective MPA policy design, or poor public support for marine protection, or lack of dedicated Ministers. It is due to the highly politicised nature of the subject-matter, and short political windows of opportunity that open, and then quickly close again.

In particular, Māori rights and interests in the marine area have yet to be fully resolved, and successive governments have managed to inflame rather than resolve this underlying tension. In both the foreshore and seabed and Kermadec Ocean Sanctuary controversies, government acted without engaging with Māori first, and unilaterally abrogated important rights and interests. This, in turn, has impeded progress with oceans-related policy.

There is also a fundamental conflict, which has yet to be fully resolved, between a protectionist approach that seeks to exclude activities from

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4 International approaches



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In this chapter we switch from the domestic historical context to review MPA developments in international fora and approaches taken in other countries.

4.1 International MPA commitments

International aspirations for MPA coverage are set out in various agreements under the framework of the Convention on Biological Diversity. New Zealand is a party to the Convention, which came into force in December 1993, and arose out of international concern over the significant and ongoing loss of indigenous biodiversity. The commitments of particular relevance to the marine environment are described below, along with the New Zealand Government response.

'10 by 10' (2004)

In 2004 the Conference of the Parties committed to a target of “effective conservation of **at least 10% of each of the world’s ecological regions by 2010**”.¹

This quantitative goal of ‘10 by 10’ was reflected in New Zealand’s first Biodiversity Strategy (released in 2000) where, in relation to the marine environment, it was to be achieved “in view of establishing a network of representative protected marine areas”.² The subsequent 2005 MPA Policy did not include a quantitative figure (although it was mentioned in

the Foreword) but focused on establishing a “network” of MPAs that was “comprehensive and representative” of the country’s “marine habitats and ecosystems”.³

'10 by 20' (2010)

In 2010, the Aichi Biodiversity Targets were adopted as part of the ‘Strategic Plan for Biodiversity 2011-2020’. This extended the timeline to achieve 10 per cent protection by a decade – from 2010 to 2020. It also included a range of qualitative requirements for MPAs. As well as covering at least 10 per cent of the marine area, MPAs needed to be “effectively and equitably managed”, “ecologically representative” and “well-connected”.⁴ It also included, for the first time, reference to “other effective area-based conservation measures” which were not strictly speaking MPAs but could contribute to conservation objectives.

Aichi Biodiversity Target 11: **“By 2020, ... at least 10 per cent of coastal and marine areas, especially areas of particular importance for biodiversity and ecosystem services, are conserved through effectively and equitably managed, ecologically representative and well-connected systems of protected areas and other effective area-based conservation measures, and integrated into the wider ... seascapes.”**

The use of coverage figures as policy targets, such as reflected in these agreements, has both positive and negative aspects. Proponents argue that they have “a clear purpose” and provide “measurable objectives”. They are also “simple to convey, politically tractable” and “help mobilize support for conservation”.¹¹

Detractors argue that such targets lack scientific validity, are not place specific, and are consistently too low. They assert that targets are set through a process that prioritises social and political acceptability over scientific robustness.¹² For example, studies between 1995 and 2015 indicated that 30 to 40 per cent coverage of MPAs was required to meet a range of biodiversity, fisheries and social goals¹³ and an updated study (for 2016 to 2020) landed on a similar figure.¹⁴ But it was not until much later (2022) that an increase from 10 to 30 per cent was internationally agreed.

A further concern with the use of targets, on their own, is that they incentivise ‘paper parks’. This is where MPAs are declared, but rules to protect them are negligible. Targets have also been criticised for incentivising the placement of MPAs in areas where there are few human activities, and therefore minimal threats, in order to meet the coverage requirement. These are termed “residual” MPAs which “are designated in areas that are hardly used for extraction purposes, with no real conservation objective and a primary purpose of meeting internationally mandated areas-based targets for protection”.¹⁵

This approach is evident in New Zealand’s MPA network where the large bulk of coverage is in areas well away from resident populations or major stressors.¹⁶ This makes the use of national-level quantitative figures, to indicate the adequacy of the country’s MPA network, arguably misleading. It also means that the bulk of the population has little access to MPAs in order to learn about, appreciate and experience a healthy and abundant marine environment.

Spotlight on benthic protection areas

Benthic protection areas were established in 2007, through Fisheries Act regulations, and protect 17 areas in the EEZ from fisheries bottom trawling and dredging. Fisheries New Zealand claims that “New Zealand’s bottom trawl closures are one of the largest national networks of protected areas and are recognised as being globally significant.”¹⁷ But does that claim stack up?

The benthic protection areas cover 31 per cent of the EEZ (thereby meeting the international coverage target). However 82 per cent are in waters that are too deep to be trawled with current technology and so they are not protected from any current fishing risk.¹⁸ They are in effect ‘residual’ MPAs. They are also not protected from what is a significant risk, seabed mining, with a benthic protection area on the Chatham Rise subject to an application for phosphate mining. This was ultimately refused consent on environmental grounds, in 2015, but may well reappear under the Fast-track Approvals Act 2024.

These benthic protection areas could usefully be morphed into fully protective MPAs, so that all damaging activities (including seabed mining) are excluded from them. This would give them a risk-related purpose but would currently require special legislation.

4.2 Multi-functional MPAs

Amongst the types of MPAs created in various jurisdictions around the world, there is a contrast between large MPAs which contain multiple activity zones within them (such as the Great Barrier Reef Marine Park), and small but strictly ‘no-take’ areas. New Zealand has adopted the second approach with mostly small but tightly regulated marine reserves. This reflects a stronger preservationist approach.¹⁹

The IUCN MPA guidelines recognise multi-zone MPAs so long as the zones are clearly identified and each has a distinct management aim aligned to one of the IUCN protected area categories. Various low-impact activities are appropriate in the different zones depending on their objectives. High-impact activities such as industrial scale fishing and aquaculture, and seabed mining, are generally considered inappropriate in any MPA.²⁰

Some commentators consider the designation of large MPAs, that integrate multiple activities, as representing best practice.²¹ These have flexibility to accommodate a range of uses (while being managed for an overall biodiversity conservation purpose), and can accommodate a wider range of interests and values. For example, low-utilisation buffer areas can be placed around highly protected areas, to help address the boundary impacts of ‘fishing the line’ while also creating economic opportunities.²² It is notable that in the Mediterranean Sea, 92 per cent of MPAs contain both no-take zones and surrounding buffer zones, where small scale fishing and other sustainable activities are permitted.²³

Spotlight on the Hauraki Gulf Marine Park: A paper park?

The Hauraki Gulf Marine Park was established in 2000 by virtue of the Hauraki Gulf Marine Park Act (see Figure 4.2). A key purpose of the Marine Park is to “recognise and protect in perpetuity the international and national significance of the land and the natural and historic resources within the Park”. It aims to “protect in perpetuity” for the “benefit, use, and enjoyment” of people the “scenery, ecological systems, or natural features” that make the area “so beautiful, unique, or scientifically important to be of national significance, for their intrinsic worth”. In addition, it is to “recognise and have particular regard to” the relationship of tangata whenua with the area, and “sustain the life-supporting capacity of the soil, air, water, and ecosystems”.³¹

Arguably, the Hauraki Gulf Marine Park was initially conceived as a multi-use MPA, not unlike the Great Barrier Reef Marine Park. However, the Act fails to include any effective tools to achieve its aims, other than setting some very broad management objectives³² (which are arguably all things to all people and have largely been ignored) and establishing a Forum comprised of representatives of tangata whenua, councils and central government (which has had a patchy record).³³

Importantly, the legislation has failed to drive protective measures on activities within the Marine Park and in adjoining catchments. Only one new marine reserve has been created in the Park's 25 year lifespan which was well underway before the Park was established. Overall, the health of the Marine Park has demonstrably declined since its establishment.³⁴

This context made the Sea Change Tai Timu Tai Pari process even more significant, as it was a collaborative process aimed at developing a marine spatial plan for the Park. This was in order to rebuild its health, and included establishing a MPA network, alongside more robust controls over fishing and catchment activities. However, the process and resultant plan has no statutory recognition or framing in the Hauraki Gulf Marine Park Act, and it floundered at the implementation stage.

All this strongly indicates that the Hauraki Gulf has essentially been a ‘paper park’ and that the Hauraki Gulf Marine Park Act needs to be strengthened to give it teeth. A revamped Act could provide the range of tools required to meet the vision for the Marine Park (as set out in the Act). This could include the ability to establish MPAs within the Park thereby avoiding the need for special legislation. Alternatively the Park could be wrapped up in broader MPA legislation.

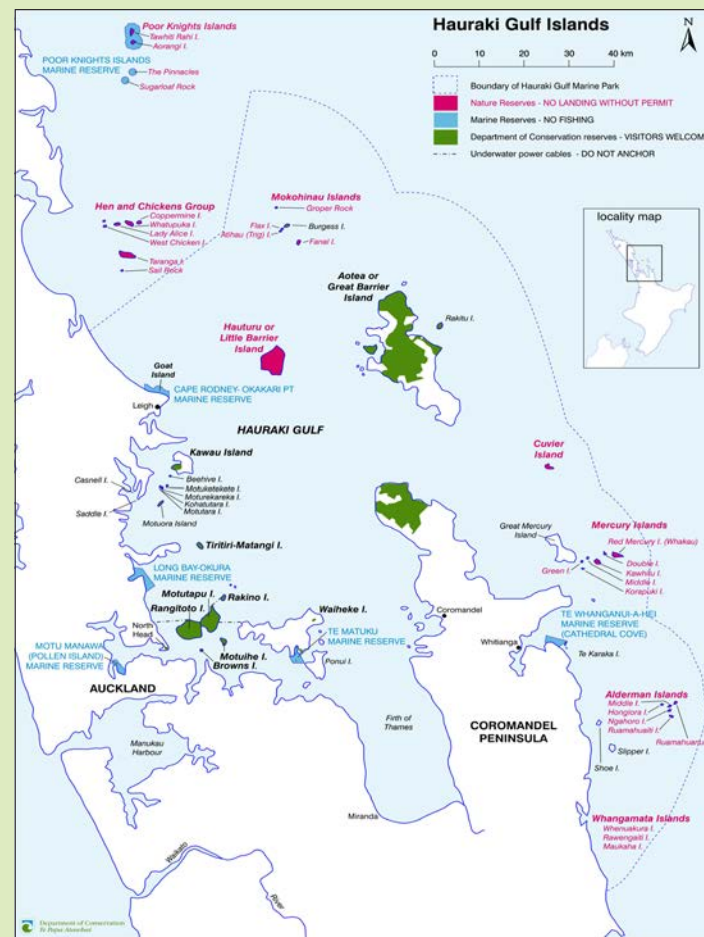


Figure 4.2 Hauraki Gulf Marine Park (Source: Department of Conservation)

5 Key areas of contention



Commercial fishing vessels berthed at Motueka

To progress MPA reform, it is important to understand what the key sticking points have been in the past, so that ways these can be acknowledged and addressed can be explored. In this chapter we canvass some key areas of contention which are evident from sectoral submissions on MPA processes and our interviews with stakeholders.

5.1 Approach to MPAs

“We must be careful about what we are trying to achieve and that it’s not protection for protection’s sake.”

There is a divergence of views as to what the starting point for MPAs should be and what tools should be used to achieve marine protection. As noted above, scientists and conservationists have argued for a fully representative network of MPAs, targeted at protecting indigenous biodiversity, and covering a significant proportion of the marine area (‘representative network approach’). This reflects a precautionary approach, where preventive measures are taken to protect the marine environment, even when scientific evidence of risk or harm is uncertain or incomplete.

MPAs with a high protection level typically exclude all extractive activities to achieve conservation objectives. However, an alternative approach is to identify areas where sustainable use *can* take place, with exclusions for the balance of the marine area (see spotlight).

A spotlight on trawl corridors: Reversing the MPA paradigm

MPA processes typically start from the premise that fishing can be undertaken throughout the marine area and the focus is on identifying places where fishing should be excluded. A reversal of this approach was applied to the identification of trawl corridors in the Hauraki Gulf, where the spatial decision-support tool Zonation was used to identify areas where benthic disturbing fishing activities *could* take place (as opposed to identifying areas where they *couldn’t* take place).

The areas were identified by assembling spatial data sets on benthic diversity, biogenic habitats, historical trawling disturbance and current fishing activity by value. Scenarios were then developed which sought to maximise the protection of areas with benthic biodiversity, biogenic habitats and recovery potential while minimising the cost on the commercial fishing industry.¹ A strength of this approach is that it provides certainty over where fishing *can take place*. We were told by some fishers that they sought such certainty as a quid quo pro for MPA creation.

In contrast to the representative network approach above, fishers argue that MPAs should not be based on arbitrary protection goals, but should instead focus on responding to identified risks to biodiversity values (‘risk-based approach’). For example, the New Zealand Sport Fishing Council

the greatest benefits for biodiversity. There is also evidence that fishers gain economic benefits from MPAs along with their broader biodiversity purpose (see spotlight below).

Spotlight on economic impacts of MPAs

A study published in 2024 which reviewed 51 MPAs in 25 countries as diverse as the USA, Canada, Australia, New Zealand, Norway, France, Spain, Italy, Mexico and South Africa found numerous positive economic benefits from MPAs and no demonstrated costs to fisheries. The researchers concluded that the evidence of benefit to fisheries “is unequivocal” and “if there are any net losses to any fisheries anywhere due to MPAs, they are not documented and likely rare”.¹⁴

Documented fisheries benefits included increased fishery catch, fish body size and spillover. The largest benefits consistently came from no-take reserves rather than multi-use areas. “In financial terms the capital is invested and people benefit from the interest on investment. To count MPAs as a cost on fisheries is analogous to claiming that interest earned on money is a cost.”¹⁵ Economic benefits from tourism were also found to be widespread across 24 countries.¹⁶

In contrast, fishers argue that MPAs fail to address the multiple pressures and threats on the marine environment, including land-based impacts, and cause more problems than they solve.¹⁷ This is through displacing fishing effort to other areas, which increases exploitation there, and exacerbates rather than reduces spatial conflicts.¹⁸ This, in turn, can lead to sustainability issues in the remaining open areas¹⁹ and subsequent calls for more closures and restrictions, in a downward spiral for the fishery.

“All marine protection does is move people and put more pressure on other areas.”



Rock lobster from Fiordland. Rock lobster fishers are often impacted by marine reserves due to the localised nature of the fishery

Spotlight on the impact of the Te Tapuwae o Rongokako Marine Reserve on CRA3

Te Tapuwae o Rongokako Marine Reserve was established, in 1999, on the coast north of Gisborne. It was jointly proposed by Ngāti Konohi and DOC and was seen by the hapū as “a kōhanga that will replenish the surrounding area and support future customary management initiatives”.²⁰ This indicates that spillover into adjacent fisheries was one of the stated aims of the marine reserve from the outset.

The reserve covers 2,450 ha which was the largest mainland marine reserve at the time it was established. It extends 5 kilometres along the shoreline, and seawards some 2.7 nautical miles, to a depth of 40 metres.²¹ It includes one entire reef system and part of a second reef that extends across the northern boundary.²² Te Tapui Mātaimai O Hakihea Reserve, covering 410 ha, was subsequently established on the northern boundary of the reserve in 2011. This excludes commercial but not recreational or customary fishing. The CRA3 Industry Association strongly opposed the marine reserve and unsuccessfully judicially reviewed the Ministerial decision to establish it.²³

The East Coast is an area of particularly high rock lobster productivity, when compared to the rest of the country, due to high settlement rates (with locally produced larvae entrained in the Wairarapa current and settling locally),²⁴ high growth rates and earlier onset of maturity.²⁵ However, it is also a relatively shallow-water fishery, making it more susceptible to weather events and seawater warming.

At the time of the marine reserve creation, fishers said they took 10 per cent of the total CRA3 harvest from inside the reserve area. However, there were no reported harvest figures at a sufficiently fine spatial scale to verify this. The CRA3 fisheries model duly excluded 10 per cent of projected recruitment from the stock assessment, to account for the expected impact of the reserve on the fishery. Twenty years later, an analysis of the proportion of CRA3 rocky reef habitat (shallower than 50m and therefore suitable for crayfishing) within the marine reserve, which was thought to be a more reliable approach to estimating recruitment there rather than relying on undocumented historical catch, found this to be only around three per cent. The stock assessment model was readjusted, to incorporate this reduced figure, meaning that previous stock assessments had likely over estimated the ‘reserve effect’.²⁶

than 45 per cent at around the same time (for the 1998-99 fishing year) which followed a 25 per cent increase the previous year. It was maintained at this high level for the subsequent six years.

A continued steep decline in the fishery belatedly prompted a 40 per cent TACC reduction in 2005-06 followed by a further small reduction in 2010-2011. Modelling shows a sharp, but shortlived, increase in spawning biomass around the time of these reductions, before a continued rapid drop during the 2010s (which rather strangely coincided with a TACC increase).

In 2023, Cyclones Hale and Gabrielle hit the area generating substantial quantities of debris which smothered nearshore reef systems. This undoubtedly impacted the fishery but to an extent that is unknown.²⁹ The current TACC for CRA3 (at 156 tonnes) is at the lowest level since the stock was brought into the quota management system.³⁰

There was a strong recovery in the rock lobster population within the marine reserve itself, evident from shortly after its establishment, despite the downhill trajectory of the adjacent fishery. The density of rock lobsters increased 2.5 fold from 2000 to 2005. At the same time, the average catch per unit effort reached 46 times higher within the reserve than outside it. Individuals and groups of lobsters were significantly larger within the reserve and there was a greater proportion of males.³¹

A tagging study of rock lobsters within the reserve indicated there was net migration into fished areas with 5 per cent of tagged animals moving in and out across the reserve boundary. This was supported by unusually large catches within one kilometre of the reserve suggesting that some fishers were focusing harvest effort near the protected area to benefit from this spillover.³²

Researchers concluded that the design of the marine reserve served to both allow the recovery of the rock lobster population within the protected area (through including an entire reef system), while also promoting spillover of adults across the northern boundary, due to it bisecting the rocky reef habitat there.³³

5.3 Displaced effort and compensation

“The key to the integrity of the quota management system is an assurance that quota will be recognised and respected. But we cannot allow quota rights to be extended into full property rights. That was never the intention. That’s not what they are. There’s no spatial ownership of the marine area.”

Although displaced effort is a topic frequently brought up by fishers, when MPAs are proposed, it is not something that is directly addressed when MPAs are established in New Zealand. In fact, we were told that adjustments to harvest settings were explicitly placed off the table in MPA discussions.

“[In the SEMP deliberations] there was no ability to look at altering the bag limits to compensate for displacement of fishing. Any suggestion we were going to restrict one group of fishers was deemed a fisheries management issue that couldn’t be considered.”

Failure to address the displacement issue, to date, is likely due to no-take marine reserves being intentionally small and designed to avoid any significant impacts on fishing. But if the area covered by marine protection was to increase significantly (reflecting the international ‘30 by 30’ commitment), the impacts of displaced effort will likely become more marked. This will raise issues around the need to ‘rebalance’ the fishery through reducing the TAC and TACC and potentially providing some form of commensurate financial adjustment support for those adversely affected.

“In general, rebalancing is about the public paying for the public good.”

In the commercial fishery, MPAs can affect both quota owners (who have a right to a share of the annual catch entitlement (ACE) for the stock) and harvesters, who commonly do not own sufficient quota to cover their

confirmed that the Crown has an “enduring obligation to ensure the loss of quota shares ... does not affect the integrity of the settlement”. It also made clear that these findings did not apply to non-settlement quota (ie additional quota acquired by Māori or quota owned by non-Māori interests).⁴⁷ This raises the question of when the creation of MPAs does and does not result in the expropriation of fisheries settlement quota, that is, where the line is to be drawn.

It has been the Crown’s longstanding position that, in principle, compensation for the loss of commercial fishing rights, arising from a proposed marine protection measure, is undesirable. This is because any decision to compensate could create expectations for the future, with significant fiscal implications. This could make it exceedingly difficult to establish further MPAs, or take other measures to protect the marine environment, given the limited size of the public purse.

“Compensation is hugely expensive and most government departments avoid it like the plague. But in the long run it is probably cheaper and people can get on with their lives and governing the country.”

The concerns about high expense are real, as the cost of such compensation packages can reach eye watering amounts, and still not necessarily effectively address the impacts on fishers or fish stocks (see spotlight below).

Spotlight on the Great Barrier Reef Marine Park structural adjustment package

When the Great Barrier Reef Marine Park underwent rezoning (in 2004) the area designated as ‘no take’ increased from 4.5 to 33.3 per cent and the no-trawling area from 15 to 28 per cent of the park area. A structural adjustment package was offered to support the changes and compensate fishers.

The purpose of the package was “to ensure the fair and equitable treatment for those fishers, fishery related businesses, employees and communities that can demonstrate ... negative impacts due to the rezoning”.⁴⁸ The structural adjustment package was initially expected to cost around AU\$10.2 million, but ended up closer to AU\$250 million.⁴⁹ An independent review of the package was undertaken in 2010, at which point the funding had climbed to \$213.7 million to assist 1782 fishers, seafood processors and upstream providers to the fishing industry.⁵⁰

Overall, the review found that the package had failed to deliver for stakeholders. In addition, it did not necessarily prevent displaced effort from having unsustainable impacts on the remaining fisheries, due to lack of catch and effort data at a sufficiently fine spatial scale. And, despite the high expenditure, most stakeholders felt the package had failed to adequately compensate them for the impacts of the zoning plan.

No quantitative assessment of the impacts of the zoning plan on fishers was undertaken prior to implementation of the package, which made it difficult to verify industry claims. Impacts of the zoning could not be disentangled from other external factors on the fishing industry such as weather events, increased fuel prices and adverse exchange rate shifts, amongst other things.

An exception to the Crown’s ‘no compensation’ approach was made, in 2020, for the extension of marine mammal sanctuaries to protect Māui and Hector’s dolphins. A Transition Support Funding Scheme totalling \$7.1 million was established to support fishers who were significantly impacted by the closure (ie had a catch reduction of 20 per cent or more). Criteria for the funding included that the fisher held a current fishing permit, had fished in the area over the previous three years to a minimum level, and had not changed to a fishing method or area not impacted by the measures.



Hector's dolphins in Akaroa harbour. Financial assistance was provided to fishers affected by extensions of bycatch protections for Hector's and Māui dolphins

Matters that are considered when reaching a decision on whether “undue adverse effects” arise include the proportion of any fishery affected, the degree to which the proposed farm would exclude fishing, the extent to which fishing that occurs in the proposed area could occur in other areas, the extent to which the marine farm would increase the cost of fishing, and the cumulative effect of the proposed farm on fishing.⁵⁹

Land interests

A provision in a RMA planning document can be successfully challenged by a land owner if it “makes any land incapable of reasonable use” and “places an unfair and unreasonable burden on any person who has an interest in the land”.⁶⁰

If there is public aspiration for a much more meaningful MPA network, of say 20 or 30 per cent of the marine area, then the compensation issue may well arise. Determining the precise loss, and therefore a methodology for compensation, will not be easy as an MPA may be only one of many pressures that restrict access to fishing opportunities. In addition, a fisheries property right is not directly comparable to (say) title over land. At least three broad approaches to compensation are possible:⁶¹

- **Full acquisition:** most market economies enable Government to compulsorily acquire private property for public purposes and enable compensation to be paid. Because this is a complete removal of a property right, compensation generally aims to leave the property owner in the same financial situation as prior to the taking. Market value is therefore generally provided (eg fishery buy-back, structural adjustment schemes, decommissioning schemes).
- **Partial acquisition:** this generally applies where only part of a property is acquired (eg to widen a road, to protect critical habitat or establish buffer zones). The aim is to leave the owner in a similar position through compensating for the ‘disutility’ (eg acquiring a proportion of licence holders rights, reduction in TAC).
- **Compensation for damages or impact:** which may occur from changes to an MPA zoning that limits certain uses. Compensation again depends on the extent that value has reduced (eg compensation for loss of access resulting in catch reduction, income loss, need for new fishing gear, or moving to a less productive area).

In cases of very large MPAs, quota owners could be compensated for an immediate reduction in TACC to address displaced effort. But the MPA network may contribute to a longer-term rebuild of the fishery, so that the TACC ultimately increases, and there is no overall loss (and potential gain) to quota holders over a longer time period. Additionally, the MPA network may help strengthen the resilience of the fishery to other pressures, so that even if the TACC is not increased over time, a further reduction is avoided. It would be almost impossible to tease out the different impacts on the fishery from a MPA network, climate change, harvesting and land-based impacts.

An alternative approach might be for the Crown to buy quota or lease ACE and hold it in public trust for marine protection purposes (ie as an environmental quota holder). This would take ACE equivalent to the displaced effort out of the system without having to reduce the TACC. The balance of the ACE could then be utilised within the quota management area outside the MPA. If the stock then increased in size, the Crown could resell the quota to recoup its costs. The Crown could even pre-emptively buy up quota, when it is available at low cost on the market, for this purpose. This would not include Treaty settlement quota which cannot be sold out of Māori ownership, although ACE could be leased. If other quota is taken out of the system, this would mitigate impacts of MPAs on Treaty settlement quota, as the quantity of ACE iwi are able to lease out from it would be unaffected.

Additional assistance is likely needed for ACE fishers, who may stand to lose financially and even risk their entire business, if they are shut out from areas that form an important part of their fishery. Such assistance was provided in the case of fisheries restrictions to protect dolphins, as described above, and such an approach could be built on.

The Ngāi Tahu rebalancing proposals set out above, which were provided in the context of the SEMP, indicate a series of practical ways that impacts of spatial protections on customary fishers could be addressed. Their essence is that iwi should be integrally involved in the creation and management of MPAs.

It is important to acknowledge those adversely affected by MPA creation (even if only in the short-term), and to have an upfront discussion about how such impacts might be mitigated or compensated, if at all. The key is to be fair, to have respectful conversations, and to be creative about solutions.

6 Key areas of convergence



Group meeting on Ōtata in the Hauraki Gulf to discuss marine conservation issues

“There is so much common ground. Everyone has an interest in seeing the oceans as a plentiful healthy environment where you can fish, fish stocks are improving and recreational activities like diving provide tourist dollars.”

Despite the sticking points described above, there *is* a lot that different sectors agree on when it comes to MPAs. This was most evident in our interviews, where views appeared to have softened over time, and were converging. We canvass key areas of broader agreement in the sections below.

6.1 Develop clear goals

“[You need to be] clear about what you are trying to protect and advance a clear strategy around those areas.”

Several interviewees emphasised the need to have clear goals for marine protection that answered the question – “what are you trying to protect and why”? They also highlighted the need for good information, on which to base trade-offs and compromises, when determining the best way to reach those goals.

6.2 Build in flexibility

Given the relative lack of information on the marine environment, and significant changes looming as a result of climate change, several interviewees emphasised the need to build flexibility into the MPA system. The marine reserve ‘lock it up forever’ model was seen as far too rigid.

“One of the main things that makes people uncomfortable about marine protection is – if the fish move what do we do? When you lock off areas [fishers] can’t adjust when they need to.”

Flexibility could be built into the system through regular reviews of MPAs, and the ability to change boundaries and locations, as well as adjust rules over time. For example, it may be that a MPA proves too small to achieve its objectives and needs to be expanded, or that a large MPA has fulfilled its purpose, and can be reduced in size to a core area. It may turn out that a MPA is no longer in the right place and needs to be moved (see spotlight).

There is a fine line to be drawn here between certainty of protection and flexibility to adjust to changing circumstances. Some lessons could be drawn from the approach taken under the Fisheries Act, which envisages regular reviews and changes to sustainability measures as conditions change, albeit recognising that such flexibility has not always played out well in practice.

We were told that some fishers feel that the efforts they have made to protect important areas of the marine environment (either voluntarily or through fisheries regulations) are discounted by environmentalists, and this can lead to disillusionment and an attitude of 'why bother'. We were also told that strong policy and statutory incentives could help people reach agreement. This includes the outcome of collaborative processes being given legal recognition (so long as they have a robust process) so their fate does not entirely rest on the political whims of the government of the day.

6.4 Start with a broad remit

"Focusing on MPAs, with the ideological perspective of just trying to lock things up, is inconsistent with a Māori world view which calls for a more holistic conversation."

Biocultural conservation is starting to bridge the gap between the "polarizing all-or-nothing regime of commercial fisheries vs marine reserves. This 'space' is one that places emphasis on re-connecting social and ecological systems, with attention to both biological and socioeconomic objectives".⁸ (Janet Stephenson et al)

Although there was strong support for collaborative processes, there was not similar support for focusing those processes solely on marine protection (as was the case with the MPA planning fora). A conversation that started with marine reserves, or MPAs, was seen as divisive. Instead, a broader frame which considered a range of desired economic, social, cultural and environmental outcomes was much more favoured.

This could include identifying areas for a range of purposes such as food production (eg wild harvest and aquaculture), renewable energy production (eg offshore wind), and marine tourism along with biodiversity conservation. It would also consider land-based impacts on the marine area. This would effectively bring MPA planning into a broader MSP framing (as was the case with the the Fiordland, Kaikōura and Hauraki Gulf processes), and is aligned with our proposals in Working Paper 1.⁹ It enables a 'relational' approach to be adopted that recognises connected species, people and place and helps deliver co-benefits to local communities.¹⁰

"[For Fiordland and Te Korowai] you got community cohesion with good facilitators that fed off the energy ... The vibe at the meetings was really positive."



The Kaikōura marine area which is managed under special legislation and overseen by the Kaikōura Guardians

divisive.²³ However, others thought the RMA planning process was quicker than collaboration, while still providing mana whenua with a strong voice.

“We were sitting in court with 25 lawyers for a week. Look at the money spent. Whereas with a better designed process where stuff happened up front you could have been more collaborative and less adversarial.”

6.6 Drive action to address land-based impacts

“A marine reserve doesn’t change anything on land.”

Interviewees frequently brought up the need to connect marine protection with addressing land-based impacts, primarily sediment. Sediment was seen to be having a significant negative impact on the health of the marine environment, thereby reducing the positive impacts of marine protection and good fisheries management. Fishers felt they were being targeted with marine reserves, because it was relatively easy to lock them out of areas, but little was being done about these broader stressors.

“There are massive pulses of sediment coming into the marine environment ... We need to empower communities [to address this] and rūnanga need to be at the heart of the empowerment.”

MPAs *can* be used to compel action further up the catchment. The New Zealand Coastal Policy Statement requires councils to “avoid effects” of activities on areas set aside for biodiversity protection under other legislation (which includes marine reserves)²⁴ and we were told that this had been helpful in litigation over sediment flows into the Long Bay-Okura Marine Reserve. However, it is clear such linkages need to be strengthened. As we highlight in the Marlborough Sounds and Otago Coast case studies, sediment flows into the marine area are generally not well-managed, and are cumulatively having a very damaging impact on marine ecosystems.

6.7 Integrate with broader oceans management

“When Māori talk about marine rights and interests, they may speak of the ocean as a living entity, that extends from Aotearoa through the Pacific, interconnected across space and time from ancestors to future generations.”²⁵ (Elizabeth Macpherson et al)

To be fully effective, MPAs need to be integrated into the broader oceans management system. This is highlighted in the Kunming-Montreal Global Biodiversity Framework Target 3, referred to above, which links the 30 by 30 commitment in the marine space to the integration of MPAs and other effective area-based conservation measures into wider seascapes. An even broader approach would be managing at the scale of ‘aquascapes’.

“Aquascapes is an emerging approach to integrate conservation, restoration and management of inland, transitional, coastal and marine waters. The approach recognizes the ecological, physical, biochemical, economic and social co-dependencies of connected aquatic systems and interconnected nature of their threats, biodiversity and ecological functioning.”²⁶ (Brent Mitchell et al)

We have discussed the interface with land-based impacts above. The interface with fisheries management is also critical. If fisheries management is not effectively addressing impacts of fishing on the broader marine environment then the positive impacts of marine protection can be significantly reduced. This is why no-take areas overseas commonly have low-intensity fishing buffer areas around them (as highlighted above).

Poor fisheries management will also necessitate more extensive marine protection to assist overall ocean health. Simply stated, if fisheries management fails to pull its weight, then marine protection has more heavy lifting to do. The marked drop in rock lobster populations in the Cape Rodney-Okakari Point, Te Whanganui-a-Hei and Tawharanui marine reserves, when the adjacent CRA 2 stock plummeted,²⁷ is a case in point. The failure of fisheries management to effectively address the widespread development of kina barrens on the north-east coast, or the impacts of trawling and dredging on biogenic habitats, are other areas where there have been efforts to expand MPAs to fill the gap (including under the RMA).²⁸



Marine area off St Kilda Beach, Dunedin, which is slated to be protected by the Ōrau Marine Reserve under the SEMP proposals

7 Making progress



Waikawa, Tōtaranui / Queen Charlotte Sound

“Which thing should we invest in first to shift the marine environment – oceans policy, strategy or MPA legislation?”

As described in chapter 3, MPA legislative reform has had a history of mis-starts, and there has been little progress over 25 years. This raises the question of how now to make tangible gains. The country cannot afford non-productive effort for another 25 years. We outline below some areas where we consider effort should be focused.

7.1 Progress legislative reform

A common thread running through the interviews was that policy reform, on its own, is unlikely to generate sufficient change. This was because policy does not have “any particular legal weight” and can be “turned on and off pretty quickly by Ministers of the day”.¹ Statutory force is needed for MPA reform to be effective and enduring.

This raises the question of what form statutory reform should take. Should efforts to promulgate a new MPA Act be continued? Or should we strengthen the Fisheries Act, the RMA, and the EEZ Act to fill gaps? Or should MPA reform be wrapped up in a broader frame, say within an Oceans Act? Or should we abandon the prospect of new legislation

altogether and amend the Marine Reserves Act instead? There are pros and cons with each approach.

“You need accountability and holding ‘feet to the fire’. The advantage of a statute is that it provides leverage to get things done.”

An MPA Act could build on the voluminous work that has already gone into legislative design. It would be more narrowly targeted (at marine protection) than an Oceans Act, but could address current deficiencies in the MPA system; lack of provision for Māori, dated tools, lack of integration between tools and the broader management system, and gaps in the toolbox. It could provide greater clarity on the objectives of marine protection and the role of various tools in achieving these. It could embed the core role of iwi and hapū within the system. It could address fisheries ‘rebalancing’ issues where merited.

Alternatively, much of this might potentially be achieved through amending the Marine Reserves Act itself, which might be more achievable within a three year Parliamentary term. This could be supported by a revised MPA Policy and new MPA standards. DOC could be tasked with developing an MPA Action Plan to identify priority locations where new collaborative processes could be supported.

- d. Strengthening human connection with the marine environment
- e. Contributing to the health and productivity of the broader marine area (including fisheries)

(2) Ensure MPAs are well designed

- a. Each MPA has a clear objective
- b. Located in the right place to meet the purpose
- c. Appropriately sized to provide the protection sought
- d. The most appropriate protection tool is used to achieve the protection goal at site
- e. Includes rules that enable MPA objectives to be met
- f. Buffer areas provided for
- g. Able to be enforced

(3) Provide a range of spatial protection tools with specific purposes, for example, they could include:

- a. *Marine reserves* – high level of protection for marine ecosystems and biodiversity, ie no take with provision for customary practices, recreation and tourism
- b. *Marine sanctuaries* – protection of identified species, including marine mammals and seabirds
- c. *Marine restoration areas* – specific marine habitats protected and/or actively restored such as benthic habitats, kelp forests and mussel beds
- d. *Marine parks* – large flexible multi-use areas which provide for customary use and low intensity fishing, as well as education, recreation and tourism

These would be in addition to other tools that contribute to spatial marine protection, including customary management measures and tools under the Fisheries Act, RMA and other legislation.

(4) Use collaborative processes to design networks:

- a. Provide a clear policy framework for collaboration (in a revamped MPA Policy)
- b. Use bottom-up collaborative processes where possible

- c. Provide appropriate central government funding
- d. Centre iwi, hapū and whānau at the heart of the process
- e. Ensure appropriate mandate of participants
- f. Include a wide remit to consider socio-economic-cultural outcomes, as well as environmental, along with all stressors on the marine environment (including land-based)
- g. Give legal weight to the outcomes of collaborative processes

(5) Address impacts on fisheries:

- a. Design MPA networks to minimise fishing impacts without compromising biodiversity objectives
- b. Define a test for when impacts of MPAs on fishing are 'unreasonable' and redress may be merited
- c. Where displaced fishing effort significantly affects stock sustainability, provide adjustment measures
- d. Consider structural adjustment support for significantly affected quota owners and ACE fishers
- e. Design measures to avoid displaced recreational fishing effort (such as reduced bag limits, size limits)
- f. Design appropriate non-commercial customary fishing redress with affected iwi and hapū

(6) Address Treaty rights and interests:

- a. Acknowledge and respect tikanga and rangatiratanga, and core Māori concepts associated with the marine space and taonga, including its mana and mauri
- b. Support indigenous-led management of marine areas which reflects tikanga and rangatiratanga
- c. Ensure Māori values, rights and aspirations inform the identification of prospective MPA sites and of areas to be avoided
- d. Foster incorporation and active use of mātauranga Māori, applying it alongside mainstream science
- e. Enable formal recognition and inclusion of mana whenua-led protected areas within MPA networks (where sought)

(7) Build in flexibility:

7.3 Start collaborating now

“MPAs are most likely to be successful over the long term if local users and their communities are directly engaged in the design and execution of reserves.”⁸

We are realistic about the prospects of achieving new MPA legislation in the short term, and acutely aware of the need to make progress now, given the perilous state of many of our coastal marine areas. We note from the above analysis, that over the past two decades, most progress has been made under the current (albeit sub-optimal) system through collaborative processes.

We also observe that there are no collaborative marine planning processes currently underway, with the Sea Change Tai Timu Tai Pari process reporting back in late 2016 and the SEMP Forum process in February 2018. Now is the time, we would argue, to put effort into establishing further collaborative processes, especially in areas subject to multiple and cumulative impacts on the marine environment. There is much experience from collaborative processes around the country that can be built on (and we reviewed several of these in Working Paper 1).⁹

“We need to construct something between a MPA and a MSP process, something which has a stronger framework but a wider conversation.”

The first cab off the rank could be the Marlborough Sounds, where there is significant degradation of marine habitats alongside fisheries depletion, as highlighted in our Marlborough Sounds case study report.¹⁰ There, the Kotahitanga mō te Taiao Alliance between Te Taihū iwi and central and local government could provide a strong supporting umbrella for a collaborative process focused on marine restoration.

Hawkes Bay was also identified as a candidate area, by some interviewees, given the already established collaborative Hawke's Bay Marine and

Coastal Group. There, the impacts of Cyclone Gabrielle on top of high levels of sedimentation and bottom trawling has impacted the seabed, with ongoing loss of biogenic habitats and depletion of inshore stocks.¹¹

The Bay of Islands/Northland area would also likely benefit from a collaborative planning process given the current extent of kina barrens and growing threat from the subtropical long-spined urchin.¹² There are also likely to be other candidate areas.

“Today the Bay of Islands presents one of the most extreme and extensive areas of ‘sea-urchin’ barren in the country.”¹³ (John Booth)

Such processes will ideally be initiated locally but may require council or central government impetus. They will need good support. Iwi and/or hapū need to be integrally involved if not in the driving seat. A highly skilled independent facilitator will be required to shepherd the collaborative process through to a positive conclusion. Relevant information, including from mātauranga Māori (when made available), local knowledge and mainstream science, will need to be collated and provided in a format (included spatially) that is useful to lay people.

The scope of the process needs to be broad enough to encompass key stressors on oceans health, and socio-economic-cultural considerations, and it needs to be given adequate time to reach a consensus result (likely at least three years).¹⁴ There needs to be some surety that the results of the collaborative process will be taken forward (even if special legislation is required to achieve this). Importantly, the collaborative groups need longevity to oversee implementation.

The Marlborough Sounds, Hawke's Bay and the Bay of Islands/Northland could be candidate areas for collaborative marine planning processes.

8 Conclusions



Overlooking Tawharanui Marine Reserve

“We all need to realise that we are in this waka together. Despite our ongoing disputes we are letting the side down, we are not meeting our kaitiaki responsibilities. There’s a bigger more important picture here. At some point you have to lay the challenge down to both sides.”

New Zealand is now far behind international best practice in MPA legislation and policy. The country is also far from adequately contributing to international commitments for the establishment of representative networks of MPAs. At the same time, the degradation of our marine environments is escalating. The current MPA system has long not been fit-for purpose and there is strong consensus around the need for change.

In this report we have identified tricky areas that will need to be negotiated to successfully effect MPA reform. But there are many areas on which there is broad consensus, and these can be fruitfully built on. It is also

clear, overall, that the greatest progress on MPAs has been made through collaborative processes and New Zealand has rich experience in this area which can provide a strong platform for future efforts.

There is no time to be wasted if we are to retain our unique indigenous marine biodiversity and rebuild healthy marine systems. While progressing MPA legislative reform, which we consider vital, we need to simply get on with the job. For this reason, we have recommended establishing further collaborative marine planning processes without delay.

We will be further developing our recommendations on MPA reform in our final oceans report due mid-2025. In that report, we will also be working up propositions for progressing MSP and national integrative mechanisms such as an Oceans Commission, National Oceans Strategy and Oceans Act. We welcome all constructive feedback on the analysis and propositions contained in this working paper.

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